

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Additionally, the judicially noticed documents reveal the two matters arise from the same transactions or events and thus the controversies are substantially similar.

Accordingly, defendants' motion is granted and this matter is stayed. An order to show cause re: stay is set for November 19, 2026, at 9:00 a.m. in Department 3.

Defendants' Demurrer and Alternative Request to Hear Previously Filed Motion to Stay Concurrently

The demurrer is dropped from calendar as moot in light of plaintiffs filing a first amended complaint on April 10, 2026.

19. S-CV-0056674 AVALOS, MIRIAM v. HYUNDAI MOTOR AMERICA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Both parties' requests for judicial notice are granted.

Plaintiff's objections to Ali Ameripour's declaration are sustained.

Ruling on Motion

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries

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this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant contends the arbitration provisions in the Owner’s Handbook warrants compelling arbitration.

First, defendant does not meet its initial burden that an agreement to arbitrate exists with respect to the Owner’s Handbook as none was attached and there is insufficient evidence one exists.

Even assuming arguendo defendant properly presented the Owner’s Handbook that contains an arbitration agreement, there is insufficient evidence the Owner’s Handbook accompanied the vehicle or that plaintiff knew of the Owner’s Handbook. Additionally, the recent California Supreme Court case found that a manufacturer’s warranties that accompany a vehicle at the time of sale does not permit the manufacturer as a third party to enforce the arbitration provision. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1126.)

Accordingly, defendant’s motion to compel arbitration and stay action is denied.

20. S-CV-0056742 LANE, DAVID v. MITCHELL, CHRISTIE

The motion to disqualify counsel is continued to **Thursday, July 16, 2026, at 8:30 a.m. in Department 3.**

21. S-CV-0057044 IN RE THE PETITION OF TRAINER, BRIAN

Petition for Approval of Minor’s Compromise Claim (Amelia Trainer)

Petitioner, in response to the court’s previous tentative ruling, filed a supplemental declaration that confirms the settlement funds will be placed in an annuity with New York Life. However, the supplemental declaration does not attach the annuity or otherwise discuss its terms. The court cannot therefore determine whether the annuity is in the best interest of the minor. Accordingly, the petition for approval of minor’s compromise claim is continued to **August 20, 2026, at 8:30 a.m. in Department 3.** Petitioner, or their counsel of record, shall file a supplemental